

released and not subject to a subsequent order for application of sale by the same judgment creditor for one year. (CCP §704.800(a).)

If the court determines that the dwelling is not exempt, the court shall make an order for sale of the property in the manner provided in Article 6 (commencing with Section 701.510) of Chapter 3. (CCP §704.780(b).)

Here, The Riverside County Recorder's Office reflects a claim of homestead exemption by Anke, but that was expunged and barred in the future under the judgment (exhibit 10) of August 12, 2025. There is a claim of Ultim8 Equities LLC, as Assignee, of a Second Trust Deed in the amount of \$175,000 and a Third Trust Deed in the amount of \$450,000. However, those Trust Deeds have been extinguished by the judgment of August 12, 2025 (Exhibit 11). The LA Judgment (the underlying judgment) is not based on a consumer debt. The LA judgment was originally in the amount of \$2,640,584.84, but has been increased to \$4,224,731.88 (Exhibit 12, December 19, 2025 writ of execution).

Since there is no homestead exemption, there is no need to provide fair market value. The statute (CCP § 704.780(b)) provides:

(b) The court shall determine whether the dwelling is exempt. if the court determines that the dwelling is exempt, the court shall determine the amount of the homestead exemption and the fair market value of the dwelling. the court shall make an order for sale of the dwelling subject to the homestead exemption, unless the court determines that the sale of the dwelling would not be likely to produce a bid sufficient to satisfy any part of the amount due on the judgment pursuant to section 704.800. The order for sale of the dwelling subject to the homestead exemption shall specify the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and shall include the name and address of each such person. subject to the provisions of this article, the sale is governed by article 6 (commencing with section 701.510) of Chapter 3. If the court determines that the dwelling is not exempt, the court shall make an order for sale of the property in the manner provided in article 6 (commencing with section 701.510) of Chapter 3.

(CCP § 704.080(b).) [emphasis added]

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502372	MENA VS ALCANTAR CONSTRUCTION GROUP INC.	MOTION TO BE RELIEVED AS COUNSEL FOR ALCANTAR CONSTRUCTION GROUP INC., LAURA ZAMBRANO, ALEJANDRO ALCANTAR

Tentative Ruling: No tentative ruling; appearances requested, either in person or telephonically.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2602239	CASTLE IMPORTING, INC. VS ORION BUSINESS INSURANCE AND RISK MANAGEMENT SERVICES, INC.	MOTION FOR AN ORDER, NUNC PRO TUNC, TO CORRECT CLERICAL ERROR BY CASTLE IMPORTING, INC.

Tentative Ruling: The Court GRANTS the request for judicial notice and the Motion for a Nunc Pro Tunc Order.